

25SMCV03494 25SMCV03494

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-28

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TENTATIVE

RULING

DEPARTMENT

207

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CASE NUMBER

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MATTER

Request

for Default Judgment

This case arises from a dispute concerning an outstanding debt owed for medical services rendered to patient Mitchell at the behest of attorney Dufour in connection with an underlying slip and fall lawsuit. The crux of the dispute is that the medical providers argue that the patient and law firm breached their respective contracts by not paying all outstanding sums owed, and that the law firm also tortiously breached its fiduciary duties by collecting the sums owed, but refusing to disburse it in full to the medical providers.

On July 2, 2025, Plaintiffs DOCS Spine + Orthopedics, successor to Perri + Siddique Spine Surgery ("DOCS"); Albert P. Wong, M.D. ("Wong"); and Parham Yashar, M.D. dba PY26 Neurosurgery P.C. ("Yashar") (together, "Plaintiffs") brought suit against Defendants Michael Ryan Dufour ("Dufour"); Dufour Law, P.C.[1] ("Dufour Law"); Valena Mitchell ("Mitchell") (together, "Defendants") and Does 1-20, alleging nine causes of action as follows:

By
DOCS:

(1)
Breach of Contract (against Dufour and Mitchell)

(2)
Common Counts (against Dufour and Mitchell)

(3)
Intentional Tort – Breach of Fiduciary Duty (against
Dufour and Dufour Law)

By
Yashar:

(4)
Breach of Contract (against Dufour and Mitchell)

(5)
Common Counts (against Dufour and Mitchell)

(6)
Intentional Tort – Breach of Fiduciary Duty (against
Dufour and Dufour Law)

By
Wong:

(7)
Breach of Contract (against Dufour and Mitchell)

(8)

Common counts (against Dufour and Mitchell)

(9)

Intentional Tort – Breach of fiduciary duty (against
Dufour and Dufour Law)

Mitchell and Dufour were served by publication on March 30, April 6,
April 13, and April 20, as ordered by the Court on March 12, 2026.

Dufour Law, P.C. was served via the Secretary of State on April 6,
2026, as ordered by the Court on March 26, 2026.

Default was entered against Defendants on June 10, 2026. The Doe Defendants remain named in the
litigation. The Court cannot
enter default judgment while the Doe Defendants remain named in the
litigation. (See California Rules of
Court, rule 3.1800(a)(7).)

Plaintiffs now request default judgment as follows:

By DOCS: \$523,541.11, representing
\$415,237.50 special damages as demanded in the Complaint, \$87,481.44 in
prejudgment interest, \$2,958.17 in costs, and \$17,864.00 in attorneys' fees.

By Yashar: \$62,285.39, representing
\$34,250 special damages as demanded in the Complaint, \$7,213.22 in prejudgment
interest, \$2,958.17 in costs, and \$17,864.00 in attorneys' fees.

By Wong: \$68,852.51, representing
\$39,652 special damages as demanded in the Complaint, \$8,351.34 in prejudgment
interest, \$2,958.17[2] in
costs, and \$17,864.00 in attorneys'
fees.

A. Damages

In
the Complaint, DOCS seeks damages in the amount of \$415,237.50; Yashar seeks

damages in the amount of \$34,250; and Wong seeks damages in the amount of \$39,652. Therefore, Plaintiffs do not seek damages in excess of what is pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; Levine v. Smith (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].)

a.

DOCS

In support of the request, DOCS advances the Declaration of Brian Perri, which provides:

2. I am a Doctor of Osteopathic Medicine, and practice in the Los Angeles area. DOCS Spine + Orthopedics is the successor to Perri + Siddique Spine Surgery, and is the medical group where I work.

3. I performed three surgeries on defendant Valena Mitchell at various times between August 17, 2021 and March 28, 2023.

4. As a result of the surgeries and various visits, Ms. Mitchell incurred a total bill for the services of DOCS Spine + Orthopedics in the amount of \$415,237.50. A copy of Ms. Mitchell's billing summary reflecting that sum (which has been redacted to exclude confidential information) is attached as Exhibit "A."

5. The billing was issued pursuant to a June 7, 2021 lien agreement signed by the defendants with DOCS Spine + Orthopedics, which provided for payment to be made from the settlement of her personal injury claim.

6. It is my understanding that Ms. Mitchell's personal injury claim was resolved on or about May, 2024. I have not been paid any portion of my bill since that time, despite filing and serving this lawsuit.

Perri

Decl. ¶¶ 2-6.) However, Exhibit A itemizes outstanding balances totaling only \$413,137.50, not \$415,237.50, as

requested. Therefore, DOCS has substantiated damages only in the amount of \$413,137.50.

b. Yashar

In support of the request, Yashar advances the Declaration of Parham Yashar, M.D., which provides as follows:

2. I am a neurosurgeon, and I do business using the name PY26 Neurosurgery P.C.

3. Mitchell. On February 21, 2023, I assisted with a surgery performed on defendant Valena

4. As a result of the surgery and related visits, Ms. Mitchell incurred a bill for my services in the amount of \$34,250. A copy of the patient ledger reflecting that sum (which has been redacted to exclude confidential information) is attached as Exhibit "A."

5. The billing was issued pursuant to a lien agreement signed by the defendants in this action on January 23, 2023, which provided for payment to be made from the proceeds from her personal injury claim.

6. It is my understanding that the personal injury claim was resolved on or about May, 2024. I have not been paid any portion of my bill since that time, despite filing and serving this lawsuit.

(Yashar Decl. ¶¶ 2-6.) The invoices attached as Exhibit A to the Yashar Declaration itemize an outstanding balance of \$34,250 as requested.

c.
Wong

In support of the request, Wong advances the Declaration of Albert P. Wong, M.D., which provides:

2. I am a neurosurgeon, and practice in the Los Angeles area with DOCS Spine+ Orthopedics.

3. On August 17, 2021, I assisted with a surgery on defendant Valena Mitchell.

4. As a result of the surgery, Ms. Mitchell incurred a bill for my services in the amount of \$39,625. A copy of a billing summary reflecting that sum (which has been redacted to exclude confidential information) is attached as Exhibit "C."

5. The billing was issued pursuant to a June 7, 2021 lien agreement signed by the defendants with my medical group, DOCS Spine + Orthopedics, which provided for payment to be made from the settlement of her personal injury claim.

6. It is my understanding that Ms. Mitchell's personal injury claim was resolved on or about May, 2024. I have not been paid any portion of my bill since that time, despite filing and serving this lawsuit.

(Wong Decl. ¶¶ 2-6.) The invoices attached as Exhibit A to the Wong Declaration itemize an outstanding balance of only \$39,625, not \$39,652, as requested.

B. Prejudgment Interest

Plaintiffs

seek prejudgment interest at the legal rate of 10% annually for the 769 days from June 1, 2024 to July 10, 2026. The Court generally finds that the requested interest rate and days are appropriate.

However, in light of the adjustments to the principal balances, as outlined above, the Court finds prejudgment interest should be awarded as follows:

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DOCS: \$413,137.50 principal balance x 10%
÷ 365 days/yr = \$113.19 daily interest x 769 days = \$87,043.11.

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Yashar: \$34,250 principal balance x 10% ÷
365 days/yr = \$9.38 daily interest x 769 days = \$7,213.22, as requested.

Wong: $\$39,625 \text{ principal balance} \times 10\% \div 365 \text{ days/yr} = \$10.86 \text{ daily interest} \times 769 \text{ days} = \$8,351.34.$

C. Attorneys' Fees and Costs

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10).) Code of Civil Procedure section 1021 provides "[e]xcept as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties [....]" Similarly, Civil Code section 1717 provides "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs."

(Civ. Code, § 1717, subd. (a).)

The Code of Civil Procedure defines the "prevailing party" as follows:

[T]he party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code

Civ. Proc., § 1032, subd. (a)(4).)

The only agreement providing for attorneys' fees is the Lien Agreement attached as

Exhibit B to the Complaint as between Yashar, Mitchell, and Dufour. Paragraph 9 of that agreement provides as follows:

9. ENFORCEMENT OF AGREEMENT. Should suit be filed, or any other action taken to enforce this agreement, outside of interpleader, the prevailing party shall be entitled to reasonable attorney's fees and costs. Jurisdiction and Venue is in Los Angeles, California where this agreement is entered into and to be carried out by the parties.

(Ex. B to Complaint at ¶ 9.) Thus, there is no evidence substantiating the request for attorneys' fees incurred by DOCS or Wong.

As for Yashar, Plaintiffs advance the attorney declaration of J. Patrick Fleming, Jr., which provides:

Attorney's fees

1. All totaled, my clients have incurred more than \$17,864 in attorney's and paralegal fees in this case. My billing rate has varied from \$595/hr. to \$625/hr, and I have worked approximately 28.8 hours.

(Fleming Decl. at p. 3.)

The Court finds this insufficient to substantiate the requested attorneys' fees, as there is no breakdown of how many hours were incurred at the rate of \$595 or how many incurred at the rate of \$625. Notably, the time expended by Counsel Fleming appears to include the total time expended regarding all three Plaintiffs, but Yashar can only recoup that portion of the attorneys' fees requested attributed to Yashar, i.e., one-third.

Further, Local

Rule 3.214 provides the de facto reasonable attorneys' fees for a principal balance of \$34,250 to be calculated as \$690 plus 3% of the excess over \$10,000. Here, 3% of \$24,250 is \$727.50, plus \$690 equals \$1,417.50. While Yashar is not strictly limited to the amounts specified in Local Rule 3.214, Yashar has not provided adequate justification for the requested amount, which is over

twelve times the de facto reasonable attorneys' fee award provided for by Local Rule 3.214.

Therefore, the Court finds that only Yashar has substantiated requested attorneys' fees in the amount of \$1,417.50.

Each Plaintiff also requests costs in the amount of \$2,958.17, representing \$497.20 in filing fees, \$2,082.22 in process server fees, and \$378.75 for efilings. (See CIV-100.) Plaintiffs are generally entitled to recoup their costs as prevailing parties, however it is unclear from the request whether Plaintiffs may jointly and severally recoup a total of \$2,958.17, or whether \$2,958.17 represents each Plaintiff's pro-rata share of costs incurred.

CONCLUSION

Plaintiffs' requests for default judgment are denied without prejudice. As a threshold matter, the Court cannot enter default judgment at all while the Doe defendants remain named in the litigation. Further, Plaintiffs have substantiated default judgment in only the following amounts:

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DOCS: special damages in the amount of \$413,137.50 and prejudgment interest in the amount of \$87,043.11

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Yashar: special damages in the amount of \$34,250; prejudgment interest in the amount of \$7,213.22; and attorneys' fees in the amount of \$1,417.50.

.
Wong: special damages in the amount of \$39,625 and prejudgment interest in the amount of \$8,351.34

Further Plaintiffs have demonstrated an entitlement to costs in the amount of \$2,958.17, however, to the extent this amount was incurred in total by all three Plaintiffs, the proposed judgments should either reflect each Plaintiff's pro rata share of the costs, or the proposed judgment should indicate that Plaintiffs collectively may recoup only a total of \$2,958.17.

]DATED: July 28, 2026 _/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court

[1] Dufour Law was erroneously named initially as Dufour
Law, APC, which was corrected by amendment dated March 26, 2026.

[2] Form CIV-100 actually lists \$2,958.12
in costs, but based on the fact that the requested default judgment amount of
\$68,852.51 requires adding costs in the amount of \$2,958.17, which
is the amount of costs each of the other plaintiffs have requested, the Court
construes the request as seeking costs in the amount of \$2,958.17.